

#	Case Name	Tentative
		Papas, and Morena Elias (ROA 26, 33), are STRICKEN, and the hearing on said motions is vacated. Defendant Saunders & Associates, APC shall pay monetary sanctions to plaintiff Daniel Maranwe in the amount of \$76.93 within 30 days. (Maranwe Decl., ¶ 10; Code Civ. Proc., § 128.5, subds. (a) [sanctions may include “reasonable expenses ... incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous”], (f)(1)(C) [“Absent exceptional circumstances, a law firm shall be held jointly responsible for violations committed by its partners, associates, and employees”], Code Civ. Proc., § 128.7, subd. (d) [sanctions may include “some or all of the reasonable ... expenses incurred as a direct result of the violation”], subd. (c)(1) [“Absent exceptional circumstances, a law firm shall be held jointly responsible for violations committed by its partners, associates, and employees”].) Defendants are cautioned not to file pleadings in the future under the name of an attorney who has not consented to or authorized same. (<i>Levine v. Berschneider</i> (2020) 56 Cal.App.5th 916, 921 [duty of candor to the court].) Given that the pending demurrer and motion to strike are stricken, defendants Saunders & Associates, APC, Gary Saunders, Vasili Papas, and Morena Elias, are granted until July 31, 2026 to file appropriate responsive pleadings to plaintiff’s Complaint. The remainder of the motion is DENIED. The case management conference is continued to November 30, 2026 at 9:00 a.m. in Department C28. Maranwe shall give notice within 2 days, and file a proof of service within 5 days.
53.	Olen Commercial Realty Corp. v. Tush Law, LTD 2023-01354690	The Court has reviewed the Parties’ respective responses to the Order to Show Cause re: Consolidation and finds good cause to consolidate the matter of Olen Commercial Realty Corp. v. Tush Law, LTD (OCSC Case No. 2023-01354690) and Tush Law, LTD v. Olen Commercial Realty Corp. (OCSC Case No. 2023-01360457) for all purposes. (Code Civ. Proc. §1048, subd. (a).) The Court finds that both actions involve claims arising out of the same transaction among the parties. The Court finds that consolidation of these matters will not increase the complexity of issues so as to cause a risk of confusing the jury. The Court finds that consolidation of these matters is necessary to avoid

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		duplicative proceedings and the potential of inconsistent verdicts. Defendants Tush Law, LTD and Alan Turlington argue that prejudice would result from consolidation because Olen's claims in this matter would no longer be subject to jurisdictional limits applicable to a limited civil case. The Court finds that the prejudice, if any, that could result from Olen's action becoming reclassified as unlimited jurisdiction is far outweighed by the gross inefficiency involved in treating these matters as separate for pre-trial purposes. Permitting these actions to proceed separately for pre-trial purposes will lead to unnecessary duplication of efforts in conducting (and resolving disputes in) discovery and otherwise bringing these closely related matters to trial. Furthermore, Defendants have not shown the type of prejudice that would justify leaving these matters as separate proceedings. (See, e.g. <i>State Farm Mutual Auto Ins. Co. v. Superior Court</i> (1956) 47 Cal.2d 428, 430-432 [prejudice from consolidation that would result in a party having to take inconsistent positions at trial].) This case (Olen Commercial Realty Corp. v. Tush Law, LTD (2023-01354690) shall be considered the lead case. All documents and other papers need only be filed in this case. The caption for all subsequent filings shall include the caption and case number for this case, followed by the case number of the other consolidated matter. The stay of the cross-complaint is lifted. The trial of the consolidated matter will remain on March 29, 2027. The mandatory settlement conference will remain on February 26, 2027. Olen shall give notice of this ruling.
54.	Knypstra Zermeno LLP v. Sheldon 2024-01446546	Cross-defendant Knypstra Hermes LLP's motion to compel arbitration is GRANTED. (Code Civ. Proc., § 1281.2 [authorizing motion].) The court orders the entire action stayed, pending completion of arbitration of the claims in the Cross-complaint. (Code Civ. Proc., § 1281.4.) The court sets a status conference re: binding arbitration for January 22, 2027 at 9:00 a.m. Cross-complainants' request for judicial notice (ROA 86) is GRANTED, limited to the fact that the documents were filed, but not of the truth of their contents. (Evid. Code, § 452, subd. (d) [court records]; <i>In re Vicks</i> (2013) 56 Cal.4th 274,